

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/22/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV366852	Paul Brown et al. vs Everett Hunter et al.	MOTION TO SET ASIDE Defendant moves to set aside the default and default judgment on the ground that he was never served with the summons and complaint. A proof of service complying with the statutory requirements has been filed with the Court, dated August 19, 2020. A facially valid proof of service creates a rebuttable presumption that service was properly effected. (Evid. Code § 647; Floveyor Internat., Ltd. v. Superior Court (1997) 59 Cal. App 4th 879; Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441-1442.) Defendant's declaration merely denies having been served. Such a bare denial, standing alone, is generally insufficient to overcome the presumption arising from a valid proof of service. Defendant presents no corroborating evidence demonstrating that service could not have occurred as reflected in the proof of service The Court finds that Defendant has failed to rebut the presumption of valid service. Accordingly, Defendant has not established that the default or default judgment is void for lack of personal jurisdiction. To the extent Defendant seeks discretionary relief under Code of Civil Procedure section 473, no showing of mistake, inadvertence, surprise, or excusable neglect has been made that would warrant relief. The Court notes Defendant did not file proof of service of this motion itself, reflecting noncompliance with applicable procedural requirements; while not jurisdictional, this further underscores the inadequacy of the present showing. Accordingly, the Defendant's Motion to Set Aside the Default Judgment is DENIED.

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LINE 2	24CV440947	Avasnsa IT Solutions vs IDC Technologies, Inc.	MOTION TO STRIKE ANSWER Plaintiff's Motion to Strike Defendant's Answer because Defendant is not currently represented by counsel. The court notes Defendant's Answer was filed by licensed counsel and was therefore properly filed. The subsequent withdrawal of counsel does not render the Answer invalid. A corporation, however, may appear only through licensed counsel and may not proceed in propria persona. Defendant IDC Technologies Inc. is granted 30 days leave to retain substitute counsel, who shall file a notice of appearance. Failure to do so may result in appropriate sanctions, including an order striking Defendant's Answer and entry of default, or other relief authorized by law. Accordingly, Plaintiff's Motion to Strike Answer is DENIED without PREJUDICE. Plaintiff's Motion for Sanctions is GRANTED in part and lowered to \$380.00. Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.
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LINES 3-5	24CV445865	Gustavo Jimenez vs American Honda Motor Company, Inc	Line 3: Defendant's Motion to Compel Responses to Form and Special Interrogatories; Line 4: Motion to Compel Production of Documents Line 5: Motion to Deems Facts Admitted. Notice is proper. The Court has received no opposition from Plaintiff. "[T]he failure to file an opposition creates an inference that the motion is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Defendant's motion to compel responses for form and special interrogatories and motion to compel productions of documents are GRANTED. Defendant has further demonstrated that Requests for Admissions are properly served, the time to respond has expired, and no response has been served by Plaintiff. Good cause appearing, Defendant's Motion to Deem Facts Admitted pursuant to CCP 2033.280(b) is GRANTED. The truth of all specified facts in the Request for Admissions, Set One, propounded by Defendant on Plaintiff on July 22, 2025 shall be deemed admitted. Motion for Sanctions is GRANTED, in part, and lowered to \$1,350.00 in attorney's fees at a rate of \$450 for 3 hours on the three motions, and \$180.00 in filing fees for a total of \$1,530.00 payable by Plaintiff to Defendant within 30 days of this order. Defendant to prepare the final order that repeats the admissions to be admitted verbatim, accompanied by the necessary Form EFS-020, within 7 days of the date of the hearing.
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LINE 6	25CV467388	Krystal Hill vs Ronak Rahmanian et al	MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT Defendant L&P Aesthetics Medical, Inc.'s motion for determination of good faith settlement. Notice is proper. No opposition received. Good cause appearing, the Defendant's motion is GRANTED. The Settlement entered between Plaintiff and L&P Aesthetics Medical, Inc. was in good faith pursuant to CCP 877.6(b). Defendant L&P Aesthetics Medical, Inc. to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.
LINE 7	25CV477354	Jazee Campaigns, LLC vs Vince Thayer et al	MOTION TO STAY Please Ctrl Click (or scroll down to) Line 7
LINE 8	25CV480258	Shabana Pirani vs Sweet Jane Kathleen Hammon	MOTION for DISCRETIONARY RELIEF Please Ctrl Click (or scroll down to) Line 8

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LINE 9	25CV481938	In re: 7072 Goldenspur Loop, San Jose, California 95138 claimants	CLAIMS FOR RELEASE & DISTRIBUTION OF EXCESS SURPLUS PROCEEDS The Court acknowledges that this matter was not set for hearing within the time contemplated by Civil Code section 2924j, subdivision (d), following the deposit of the surplus funds with the Clerk. The delay was the result of the Court's clerical oversight and calendaring process and is not attributable to any party. To minimize any further delay, the Court advanced the hearing to July 22, 2026. The Court has reviewed the claims submitted by (1) Carly Santos , the former owner asserting entitlement to surplus proceeds based, in part, on the homestead exemption, and (2) the Franchise Tax Board asserting entitlement based upon an alleged tax lien. Before the Court can determine the proper distribution of the surplus funds, several legal issues require further discussion. Counsel are asked to appear at the hearing 7/22/26 at 9:00 a.m. Appearances in person are preferred; remote is acceptable.
9:01	CASE #	CASE TITLE	RULING
LINE 1	25CV464323	Optio Solutions, LLC, et al vs Bars Transportation, LLC, a California limited liability company	Hearing: Order of Examination

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Calendar Line 7

Case Name: *Jazee Campaigns, LLC v. Vincent Thayer, et al.*

Case No.: 25CV477354

Motion to Stay Proceedings Pending Resolution of Criminal Action

Defendants Vincent Thayer and Gentech Laboratories, LLC move to stay this action pending resolution of the criminal proceedings in *United States v. Thayer*, Case No. 3:25-cr-00167-SI (N.D. Cal.).

Discussion

A trial court has discretion to stay civil proceedings when a parallel criminal proceeding substantially implicates a party's Fifth Amendment privilege against self-incrimination. (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885-887.) In exercising that discretion, courts balance the competing interests, including: (1) the extent to which the defendant's Fifth Amendment rights are implicated; (2) the burden on the defendant; (3) the convenience of the court and efficient judicial administration; (4) the interests of the plaintiff in proceeding expeditiously and the prejudice that may result from delay; (5) the interests of nonparties; and (6) the public interest. (*Id.* at p. 885.)

The first two factors weigh heavily in favor of a stay. The federal indictment was filed before this civil action commenced and charges Defendant Thayer with an extensive scheme involving COVID-19 testing and related billing practices. Although Plaintiff characterizes this action as a contract dispute concerning unpaid compensation for testing services, the record demonstrates a substantial factual overlap between the subject matter of the civil action and the pending criminal prosecution. At this early stage of the litigation, requiring Thayer to file a verified responsive pleading or otherwise participate in discovery would place him in the constitutionally impermissible position of choosing between asserting his Fifth Amendment privilege and risking adverse consequences in this civil action, or waiving that privilege by providing sworn testimony that could bear upon the criminal case. (See *Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 689-690.)

The Court is not persuaded by Plaintiff's contention that the overlap is too attenuated to justify a stay. The privilege protects not only answers that are directly incriminating but also those that could furnish a "link in the chain" of evidence supporting a criminal prosecution. (*Hoffman v. United States* (1951) 341 U.S. 479, 486.)

The third factor likewise favors a stay. This litigation remains in its earliest stages. Pursuant to the parties' stipulation, Defendants' obligation to respond to the Complaint has been held in abeyance pending resolution of this motion. Staying the action now will conserve judicial resources and avoid the prospect of piecemeal litigation while the criminal case proceeds.

The fourth factor weighs only slightly against a stay. Plaintiff asserts that delay may result in fading memories and lost evidence. While those concerns are legitimate, Plaintiff has not identified any specific evidence that is presently at risk of loss. In addition, Plaintiff filed this action after the criminal indictment had already been filed and after the parties' business

relationship had allegedly ended many months earlier, reducing the weight of its claim of urgent prejudice.

The fifth factor is neutral.

The sixth factor slightly favors a stay. The public has an interest both in the prompt resolution of civil disputes and in ensuring that criminal prosecutions proceed without unnecessary interference while constitutional rights are protected. Under the circumstances presented here, the latter interest predominates.

Gentech Laboratories, LLC

Plaintiff correctly observes that a corporation possesses no Fifth Amendment privilege against self-incrimination. (*Avant! Corp.*, supra, 79 Cal.App.4th at pp. 882-883.) Nevertheless, a stay of the action as to Gentech is appropriate on this record. Plaintiff's own Complaint alleges that Gentech acted through Defendant Thayer, and Defendants have presented evidence that Gentech is substantially intertwined with the subject matter of the federal prosecution. The record further indicates that Thayer is the individual possessing the principal knowledge necessary to defend the corporation. Under these particular circumstances, requiring the corporate defendant to proceed while staying the action only as to Thayer would substantially undermine the protections that justify a stay in the first instance and would likely result in inefficient, piecemeal litigation. The Court therefore exercises its discretion to stay the action in its entirety. This ruling does not recognize a Fifth Amendment privilege on behalf of Gentech; rather, it reflects the Court's balancing of the competing interests under *Avant!*.

DISPOSITION

The Motion to Stay Proceedings is GRANTED.

This action is stayed in its entirety pending further order of the Court.

To avoid an indefinite stay, the parties shall file a Joint Status Report every 180 days, beginning January 15, 2027, advising the Court of the status of the federal criminal proceedings and whether grounds continue to exist for maintaining the stay. Either party may move to lift or modify the stay upon a material change in circumstances, including resolution of the criminal case or other developments materially affecting the balancing of interests under *Avant!*.

The previously stipulated extension of Defendants' deadline to respond to the Complaint shall remain in effect during the pendency of the stay. Defendants' responsive pleading shall be due 30 days after the stay is lifted, unless otherwise ordered by the Court.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

Calendar Line 8

Case Name: *Shabana Pirani v. Sweet Jane Kathleen Hammon*

Case No.: 25CV480258

MOTION FOR DISCRETIONARY RELIEF

Defendant seeks discretionary relief pursuant to Code of Civil Procedure 473b from its failure to timely file its responsive pleading. Defendant attributes the initial failure to a breakdown in communication between the attorney, the legal secretary, and the firm's legal processing vendor.

While Defendant has explained the initial filing error amounting to excusable mistake and inadvertence within the meaning of CCP 473, the moving papers do not explain why relief was not sought until June 9, 2026, nearly five months after the responsive pleading was due on January 17, 2026. Nor do they address Defendant's failure to appear at the May 21, 2026 Case Management Conference. These omissions reflect a lack of diligence and weigh against granting discretionary relief.

Nevertheless, after balancing the relevant factors, the Court concludes that relief is appropriate. Plaintiff received timely service of Defendant's anti-SLAPP motion and therefore had timely notice of Defendant's intent to respond to the action. The record does not demonstrate that Plaintiff suffered any material prejudice as a result of the delayed filing, beyond the delay itself.

Moreover, Code of Civil Procedure section 425.16, subdivision (f), a special motion to strike may be filed within 60 days of the service of the Complaint or, in the court's discretion, at any later time upon terms it deems just. California courts have long recognized the strong policy favoring resolution of cases on their merits whenever reasonably possible.

The Court emphasizes, however, that this ruling should not be construed as approval of Defendant's conduct. Counsel bears the responsibility to ensure that documents submitted through an electronic filing service are actually accepted for filing and to monitor the status of the case thereafter. The unexplained five-month delay in seeking relief, together with Defendant's failure to appear at the Case Management Conference on May 21, 2026 falls well below the level of diligence the Court expects of litigants and counsel.

DISPOSITION:

Defendant's motion for discretionary relief under Code of Civil Procedure section 473(b) is GRANTED. Plaintiff's request for entry of default is DENIED.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.